

Paramata Sirigibattula Lakshmi ... vs Paramata Dhanakoti Mahesh, on 3 November, 2025

APHC010521262025

IN THE HIGH COURT OF ANDHRA PRADESH
AT AMARAVATI
(Special Original Jurisdiction)

[3397]

MONDAY, THE THIRD DAY OF NOVEMBER
TWO THOUSAND AND TWENTY FIVE

PRESENT

THE HONOURABLE SRI JUSTICE VENUTHURUMALLI GOPALA
KRISHNA RAO

TRANS. CIVIL MISC.PETITION NO: 314/2025

Between:

1. PARAMATA @ SIRIGIBATTULA LAKSHMI PRASANNA,, W/O.
DHANAKOTI MAHESH, D/O. SIRIGIBATTULA VENKATESWARA
RAO, R/O. D. NO. 4-3/1, GOUND PETA NEAR SAIBABA TEMPLE,
AGED 35 YEARS, CHERUKUMILL VILLAGE, AKIVIDU MANDAL,
WEST GODAVARI DISTRICT

...PETITIONER

AND

1. PARAMATA DHANAKOTI MAHESH, S/o. Lakshman Rao, aged 35
years, R/o. D. No. 11-60, Main Road, Avidi Village, Kothapeta Mandal,
Dr. B.R. Ambedkar Konaseema District.

...RESPONDENT

Petition Under Section 24 of the C.P.C. Praying that in the circumstances stated in the affidavit filed therewith, the High Court may be pleased to order withdrawal of H.M.O.P. No. 111 of 2024 on the file of Learned Civil Judge Senior Division, Kothapet, and transfer the same for trial and disposal to the Court of Senior Civil Judge Bhimavaram and pass

IA NO: 1 OF 2025

Petition under Section 151 CPC praying that in the circumstances stated in the affidavit filed in support of the petition, the High Court may be pleased to order stay of all further proceedings in H.M.O.P. No. 111 of 2024 on the file of the court of Learned Civil Judge [Senior Division], Kothapet, pending disposal of the main Transfer C.M.P and pass

Counsel for the Petitioner:

1. SIVA SANKARA RAO BORRA

Counsel for the Respondent:

1.

THE HON'BLE SRI JUSTICE V. GOPALA KRISHNA RAO

TRANSFER CIVIL MISCELLANEOUS PETITION No.314 of 2025

ORDER:

Today, when the matter has been taken up for hearing, learned counsel for the petitioner has submitted that, proof of service Memo has been filed before the Registry on 27.10.2025 vide U.S.R.No.121182 of 2025, along with the Postal Track Consignment Sheet downloaded from the Postal Department Website and the same has been placed on record. As per the Postal Track Consignment Sheet, the registered notice sent to the respondent and the same was served on him on 10.10.2025. Despite service of notice, there is no representation on behalf of respondent. Therefore, „service held sufficient .

2. The petitioner/wife herein filed the present petition under Section 24 of the Code of Civil Procedure, 1908, (for short „the C.P.C.) seeking for withdrawal of H.M.O.P.No.111 of 2024 on the file of the Senior Civil Judge, Kothapeta, and transfer the same to the Court of Senior Civil Judge, Bhimavaram, West Godavari District, for trial and disposal of the same.

3. The case of the petitioner in brief is as follows:

I. The petitioner is legally wedded wife of the
respondent/husband and their marriage was

solemnized on 24.12.2020, in the presence of both side elders and well wishers at Cherukumilli Village, as per the Hindu Rites and Caste Customs. During their wedlock, the petitioner and the respondent were begot a child. After that, due to the matrimonial disputes between the spouses; the petitioner/wife has been residing separately along with her child and depending upon the mercy of her parents at Cherukumilli Village, Akividu Mandal, West Godavari District. The petitioner/wife further pleaded that in view of the harassment made by the respondent/husband, she lodged a complaint against him, dated 21.05.2023, which was registered as F.I.R.No.128 of 2023, for the offences punishable under Section 498-A r/w 34 of I.P.C. and Sections 3 & 4 of the Dowry Prohibition Act, 1961, before the Akividu Police Station, the same is pending for investigation and she also filed other two (2) cases against the respondent/husband herein i.e., Maintenance Case vide M.C.No.12 of 2023 on the file of the Principal Junior Civil Judge-cum-Additional Judicial Magistrate of First Class, Bhimavaram, under Section 125 of Cr.P.C., seeking maintenance from the respondent/husband and Domestic Violence Case vide D.V.C.No.40 of 2024 on the file of the II Additional Judicial Magistrate of First Class, Bhimavaram, both the case are pending for adjudication before the competent Courts at Bhimavaram, West Godavari District. II. Learned

counsel for the petitioner would further contend that with a view to cause inconvenience and to harass the petitioner/wife, the respondent/husband herein filed a divorce petition vide H.M.O.P.No.111 of 2024 on the file of the Senior Civil Judge, Kothapeta, under Section 13(1)(ia)(ib) of the Hindu Marriage Act, 1955, seeking for dissolution of the marriage and the same is also pending for adjudication.

III. Learned counsel for the petitioner would further contend that the petitioner being a woman, has been residing separately along with her child and depending upon the mercy of her parents at Cherukumilli Village and it is very difficult for her to travel to attend the divorce case proceedings which was filed by the respondent/husband herein before the Court at Kothapeta without any male assistance and that she was constrained to file the present petition against the respondent/husband, seeking for withdrawal of H.M.O.P.No.111 of 2024 on the file of the Senior Civil Judge, Kothapeta, and transfer the same to the Court of Senior Civil Judge, Bhimavaram, West Godavari District, for trial and disposal of the same.

4. Heard Mr. Siva Sankara Rao Borra, learned counsel for the petitioner.

5. Though notice has been served, there is no representation on behalf of the respondent. Therefore, „service is held sufficient .

6. Perused the material available on record.

7. The material on record prima facie shows that, in view of the matrimonial disputes between the spouses, the petitioner/wife has been residing separately along with her child at her parents house in Cherukumilli Village. She has instituted three (3) cases against the respondent/husband, namely: (i) a Criminal Case under Section 498-A r/w Section 34 of the I.P.C. and Sections 3 and 4 of the Dowry Prohibition Act, 1961, before the Akividu Police Station, which is pending investigation; (ii) a Maintenance Case vide M.C.No.12 of 2023, on the file of the Principal Junior Civil Judge-cum-Additional Judicial Magistrate of First Class, Bhimavaram, seeking maintenance; and (iii) a Domestic Violence Case vide D.V.C.No.40 of 2024, on the file of the II Additional Judicial Magistrate of First Class, Bhimavaram, both of which are pending adjudication. The material on record further discloses that the respondent/husband herein filed a divorce petition against the petitioner/wife vide H.M.O.P.No.111 of 2024 on the file of the Senior Civil Judge, Kothapeta, under Section 13(1)(ia)(ib) of the Hindu Marriage Act, 1955, seeking for dissolution of the marriage and the same is also pending for adjudication.

8. The Apex Court in a case of GEETA HEERA Vs HARISH CHANDER HEERA¹, held by considering the fact that "if a wife does not have sufficient funds to visit the place where the divorce petition is filed by her husband, then the transfer petition filed by the wife may be allowed."

9. The Apex Court in a case of N.C.V. Aishwarya Vs A.S.Saravana Karthik Sha² held as follows:

"9. The cardinal principle for exercise of power under Section 24 of the Code of Civil Procedure is that the ends of justice should demand the transfer of the suit, appeal or

other proceeding. In matrimonial matters, wherever Courts are called upon to consider the plea of transfer, the Courts have to take into consideration the economic soundness of both the parties, the social strata of the spouses and their behavioural pattern, their standard of life prior to the marriage and subsequent thereto and the circumstances of both the parties in eking out their livelihood and under whose protective umbrella they are seeking their sustenance to life. Given the prevailing socio- economic paradigm in the Indian society, generally, it is the wife's convenience which must be looked at while considering transfer."

10. On considering the submissions made by the learned counsel for the petitioner and in view of the ratio laid down in the aforesaid case laws that in matrimonial proceedings, the convenience of the wife has to be taken into consideration than that of the inconvenience of the husband. Therefore, I am of the considered view that there are justifiable grounds to consider the (2000) 10 SCC 304 2022 LiveLaw (SC) 627 request made by the petitioner/wife, seeking for withdrawal of H.M.O.P.No.111 of 2024 on the file of the Senior Civil Judge, Kothapeta, and transfer the same to the Court of Senior Civil Judge, Bhimavaram, West Godavari District.

11. In the result, the present Transfer Civil Miscellaneous Petition is allowed and the H.M.O.P.No.111 of 2024 on the file of the Senior Civil Judge, Kothapeta, is hereby withdrawn and transferred to the Court of Senior Civil Judge, Bhimavaram, West Godavari District. The learned Senior Civil Judge, Kothapeta, shall transmit the case record in H.M.O.P.No.111 of 2024, to the Court of Senior Civil Judge, Bhimavaram, West Godavari District, duly indexed as expeditiously as possible, preferably within a period of two (02) weeks from the date of receipt of a copy of this order. There shall be no order as to costs.

As a sequel, miscellaneous petitions, if any pending and the Interim Order granted earlier, if any, shall stand closed.

03.11.2025 CVD JUSTICE V. GOPALA KRISHNA RAO Date: